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UPDATED Probate Calendar for Friday, July 10, 2026

9:00 a.m. in Department Paso 2, with Judge Michael C. Kelley (by Michele L. Rowe, Judge Pro Tem) presiding

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR/ DISMISSED/ TERMINATED or CONTINUED:</u>				
14	26PR-0178	In Re: Josue Baranda-Gallardo	Minors Compromise Filed 05/26/2026	CONTINUED LIST: <i>The matter is continued to October 9, 2026 at 9:00 a.m. in P2. All additional materials are due by September 3, 2026. The following is noted:</i> <i>1. <u>Compromise generally.</u> The Petition generally appears ready for approval. Nevertheless, as the Pooled Trust contains many issues as noted below, a continuance of the entire Petition is needed to complete the full approval.</i> <i>2. <u>Pooled Trust.</u></i> <i>a. Joinder Agreement.</i> <i>i. The Joinder Agreement, item 5 and the fee table do not comply with California Rules of Court rule 7.903, subsection (c)(8). The Order of this Court must specifically note that the Court is not agreeing to any fees at this time, but will award reasonable fees at the time of the first</i>

				<i>account review or upon other Petition.</i> <i>ii. The Court requires a completed, but unsigned copy of the Joinder Agreement for review. The Joinder Agreement provided does not disclose the remainder beneficiary designation or the beneficiary advocate/ successor advocate names. It does not complete anything other than the fee schedule. It is unclear what the Court would be approving based on this document. The proposed completed form, with all nominations proposed, is needed.</i> <i>b. Master Trust</i> <i>i. Clarification is needed on the Trust sections prohibiting the beneficiary from amending the Trust, even with court approval. These sections appear throughout the Master Trust numerous times with firm language that the Trust Beneficiary may not, under any circumstances, amend the trust. California Rules of Court, rule 7.903 subsection (c)(2) only prohibits modification or revocation without Court approval. Thus, it appears this</i>
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				<i>Trust prohibits the beneficiary from even Petitioning the Court for amendment or modification, which is not the standard required by the California Rules of Court. It is noted other sections of the Master Trust discuss this Court approval process under the Rules of Court, for the Trustee or Non-Profit, but the prohibition on even a Petition by the Trust beneficiary is not discussed. Clarification is needed in some way to note that the Court may be Petitioned to amended or modify, by the Trust Beneficiary.</i> <i>ii. Sections 6.8 and 9.8 appear to allow for full modification of this trust, for transfer to another trust, without approval by a Court. This appears to be in violation of California Rules of Court, rule 7.903, subsection (C)(2). This section should be deleted or modified to require Court pre-approval. It is noted that section 12.4 indicates that court supervised trusts required court approval, but it is not clear by the balance of the terms that this provision supersedes and</i>
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				<i>controls over other contradictory provisions.</i> iii. <i>Sections 6.2, 7.4. D., 7.6, 9.2, 9.5.D, and 10.6 all discuss compensation for attorneys and the Trustee. Nevertheless, not all these sections require Court review under Cal. Rules of Court, rule 7.903, subsection (c)(8) before payment. It noted a few other sections do specifically limit fees based on review, but at least one requires the set-up fees be paid, without any Court oversight or approval to determine just and reasonableness. Modification is needed.</i> iv. <i>Sections 10.1 (Trust Administrative powers) and section 11.3 appear to conflict. The provisions under section 10.1 provide investment powers within the terms, and not just administrative provisions. Revision will be needed.</i> v. <i>Section 10.5 third paragraph, last line, the Periodic payments “may” be permitted, not “shall”. The word “shall” should be replaced to match the statute and Rules of Court.</i>
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